

****at 9:30 a.m.****

Igor Sill v. William Deem et al

24CV000698

MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING: The motion is GRANTED. Plaintiff is directed to submit a Proposed Order for the Court's signature.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Igor Sill ("Plaintiff") moves, pursuant to Code of Civil Procedure section 437c, subd. (f)(1),⁴ for summary adjudication on the following issue: "Defendant Kimberton Wines LLC ('Kimberton') is liable to Plaintiff for breach of the written contracts between Kimberton and Plaintiff alleged in the First Cause of Action of the First Amended Complaint because there is no triable issue of material fact with regards to Kimberton's liability for breach of contract, in that the undisputed evidence shows Kimberton failed to pay the contract price for wine grapes delivered to and accepted by Kimberton." (Notice of Motion, pp. 1-2.)

"A party may move for summary judgment in an action or proceeding if it is contended . . . that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A plaintiff . . . has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff . . . has met that burden, the burden shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*) ["a plaintiff bears the burden of persuasion that 'each element of' the 'cause of action' in question has been 'proved,' and hence that 'there is no defense' thereto"].)

Under California law, the elements of a breach of contract cause of action are: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The Court finds that Plaintiff has satisfied its initial burden of producing facts sufficient to make a prima facie showing as to each element of the claim. (Separate Statement, UMFs 1-8, and evidence cited therein.) Kimberton failed to file anything in opposition to the motion, and therefore fails to show a triable question of material fact requiring trial in the matter.

Based on the foregoing, the Motion is GRANTED.

Although not expressly stated, Plaintiff has made a prima facie showing of damages in the amount prayed for through the FAC – \$118,335, plus 6% annual interest on \$59,167.50 (\$9.73 per day) from December 15, 2023 and 6% annual interest on \$59,167.50 (\$9.73 per day) from February 15, 2024. (FAC, ¶¶ 18, 20, 23, 30-13, 33-34; Separate Statement UMF 8 and cited evidence.)